114	**Andrawes Husary vs. Shahidi** **2025-01487294**	**1.Motion - Other (Amended Application to Appear Pro Hac Vice as to Thomas J. Kherkher)** **2. Case Management Conference** Plaintiffs' amended application for pro hac vice admission of attorney Thomas J. Kherkher is **GRANTED**. On or before the anniversary of the date of this order, if this attorney remains counsel for the moving party, the moving party must pay an annual renewal fee of five hundred dollars ($500) for each year that the attorney maintains pro hac vice status in this case. (Gov. Code, § 70617, subd. (e)(2).) That said, the Court **ADMONISHES** Plaintiff and counsel for failing to file the amended application at least 10 court days before today's hearing, as the Court previously ordered on 5/14/2025. (ROA #78.) Future failures to comply with the Court's order may result in the issuance of an Order to Show Cause re Monetary Sanctions. Moving party shall provide notice.
115	**Salvation Investment, LLC vs. MO Murrayfield, LLC** **2019-01050162**	**Motion to Dismiss** Defendants Southside Ventures, LLC; Log Hill Properties Consulting LLC; Greg Logsdon; and Robert Hill's (collectively, "Seller Defendants") Motion for Dismissal Under the Doctrines of Res Judicata and Collateral Estoppel is **DENIED**. As an initial matter, the Court **ADMONISHES** Seller Defendants' counsel for submitting an opening memorandum of points and authorities that exceeds the 15-page limit imposed by the California Rules of Court. While counsel attributes the oversized brief to an "unflagged formatting error embedded into the Word document" (ROA #2975, Reply at p. 3, fn. 7), it is nevertheless the responsibility of counsel to check for such formatting issues before submitting briefs to the Court. That said, the Court exercises its discretion to consider the oversized brief in this instance. The Court also notes that after Seller Defendants filed the instant motion, Plaintiff Salvation Investment, LLC voluntarily filed a request for dismissal of its derivative claims on behalf of nominal Defendant MO Murrayfield, LLC ("Murrayfield") as to Seller Defendants. (ROA #2973.) Accordingly, the parties' dispute on this motion relates only to Plaintiff's direct claims against Seller Defendants. While the title of Seller Defendants' motion and the substance of Seller Defendants' notice of motion and motion suggest that Seller Defendants are only moving to "dismiss" Plaintiff's claims based upon the principles of res judicata and collateral estoppel, Seller Defendants' actual arguments in their supporting memorandum of points and authorities go far beyond the application of res judicata and collateral estoppel. For example, Seller Defendants submitted the declarations of Robert Hill (ROA #2942) and Greg Logsdon (ROA #2943) as evidence that Seller Defendants never

directly communicated with Plaintiff. Seller Defendants then use this evidence throughout their memorandum of points and authorities to contend that Salvation's various direct claims against them must be "dismissed" because Salvation cannot satisfy all the elements of Salvation's claims. (ROA #2939, Mot. P&A, p. 9, 11-14.)

"The procedure of moving to dismiss an action based on extrinsic evidence is disapproved in California and the motion is permitted only where it complies with the requirements for a motion for summary judgment. Here, the motion utterly fails to comply with any of the procedural requirements for a summary judgment motion." (*Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5, internal citations omitted.)

"However, the motion may be treated as a nonstatutory motion for judgment on the pleadings. Such a motion may be granted when the complaint fails to state facts sufficient to constitute a cause of action. In considering this motion, the court may consider matters properly subject to judicial notice." (*Id.*)

Since the Court may take judicial notice of the records of the Missouri Action, including the final judgment rendered in that action (Evid. Code, §§ 452, subds. (a), (d)), the Court will **TREAT** Seller Defendants' motion as a nonstatutory motion for judgment on the pleadings and consider only Seller Defendants' arguments based on res judicata and collateral estoppel based on the Missouri Action.

Accordingly, the Court **DECLINES** to consider any arguments made by Seller Defendants requiring consideration of any other extrinsic evidence, and the Court also **SUSTAINS** all of Salvation's objections to the declarations of Hill and Logsdon submitted in support of this motion on the ground that they are irrelevant to this motion.

On Seller Defendants' res judicata and collateral estoppel arguments, the Court first finds that Seller Defendants have failed to establish that there is any final judgment on the merits in the Missouri Action as to Defendant Log Hill. Seller Defendants acknowledge that the Missouri trial "ultimately tried only [the Missouri Plaintiffs' fraudulent misrepresentation claims against Southside and Hill." (ROA #2939, Mot. to Dismiss, 2nd set of p. 8, emphasis original.) Therefore, any judgment rendered after trial based on verdicts applying only to Southside and Hill is necessarily not a final judgment on the merits as to Log Hill.

In reply, Seller Defendants contend that because "[i]n *Missouri*, Murrayfield did not dismiss its claims against Log Hill, and instead abandoned its claims against it prior to the submission of the case," then *under California Code of Civil Procedure section 581(d)*, "this abandonment constitutes a dismissal with prejudice." (Reply at p. 7, emphasis added.) Seller Defendants have cited no applicable law from *Missouri*—i.e., where this alleged claim abandonment took place—nor explained what the legal effect of such abandonment is under *Missouri* law. Indeed, based on the Court's own independent research, it appears that the only *Missouri* statute on point is section 510.130, which states that "[a] plaintiff shall be allowed to dismiss

		his action *without prejudice* at any time before the same is finally submitted to the jury . . . and not afterward." (Mo. Ann. Stat. § 510.130, emphasis added.) Nor have Seller Defendants provided sufficient evidence of the facts relating to this alleged abandonment. The only evidence is by way of the Declaration of Bradley Hansmann, who attests only that "the Missouri Plaintiffs did not submit any of their claims, including their breach of property management agreement claim, against Log Hill Properties for trial. No claims against Log Hill for mismanagement of the Murrayfield property were included in the jury instructions." (ROA #2940, ¶ 8.) The declaration then simply attaches the Missouri Plaintiffs' jury instructions as an exhibit. (*Id.* at Exh. 3.) Did Missouri Plaintiffs file any request for dismissal of Log Hill? Did the Missouri court enter any dismissal or judgment involving Log Hill? In short, none of the evidence submitted by Seller Defendants addresses these questions or conclusively establishes how the *Missouri* court treated the Missouri Plaintiff's claims against Log Hill. (See *Niko v. Foreman* (2006) 144 Cal.App.4th 344, 368 [rejecting party's arguments made "without supporting legal or factual analysis," as it is not the court's function to "act as counsel for [a party] and furnish a legal argument' for that party]; *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784-785 [when a party "fails to raise a point, or asserts it but fails to support it with reasoned argument and citations to authority," the point is "waived"].) Therefore, Log Hill has not demonstrated that it is entitled to "dismissal" or judgment on the pleadings in this case because of res judicata or collateral estoppel based upon the Missouri Action. As for Logsdon, Southside, and Hill, the Court finds that these Defendants have failed to establish that either res judicata or collateral estoppel applies here to bar Salvation's direct claims against them. "The doctrine of res judicata has two aspects—claim preclusion and issue preclusion." (*Samara v. Matar* (2017) 8 Cal.App.5th 796, 803.) "Claim preclusion prevents relitigation of the same cause of action in a second suit between the same parties in privity with them. Claim preclusion arises if a second suit involves (1) the same cause of action (2) between the same parties or those in privity with them (3) after final judgment on the merits in the first suit." (*Id*, internal quotes, italics, and brackets omitted.) Collateral estoppel or issue preclusion "prohibits the relitigation of issues argued and decided in a previous case, even if the second suits raises a different cause of action. . . . The doctrine applies (1) after final adjudication (2) of an identical issue (3) actually litigated and necessarily decided in the first suit and (4) asserted against one who was a party in the first suit, or one in privity with that party." (*Id.* at p. 804, internal quotes & citations omitted.) The Court finds that Logsdon, Southside, and Hill have failed to demonstrate that Salvation was a party in the Missouri Action (this is

undisputed) or a party in privity with the Missouri Plaintiffs in the Missouri Action. These Seller Defendants' only argument offered to support their privity argument is as follows:

> Salvation had no direct relationship, communications, or dealings with Sellers prior to the filing of this California Action. (Declaration of Robert Hill ("Hill Decl.") ¶¶ 4-7; Declaration of Greg Logsdon ("Logsdon Decl.") ¶¶ 3-6.) As such, Salvation's assertion of direct causes of action against Sellers necessarily arise out of its contractual shareholder relationship (privity) with Murrayfield and their right to be free from the "injury" alleged regarding the Murrayfield Property. Thus, Salvation is in privity with Murrayfield (a party to the previously adjudicated claim) in satisfaction of this element of claim preclusion.

(Mot. P&A at p. 8.) In short, this argument relies upon extrinsic evidence that the Court may not consider on this speaking motion to dismiss treated as a motion for judgment on the pleadings. Therefore, this argument fails on this motion for judgment on the pleadings.

In reply, Logsdon, Southside, and Hill expand upon this argument by contending that "the point is that, to the extent Salvation seeks recovery for injury inflicted upon Murrayfield and reflected in the lost value of Salvation's membership interest, the claim belongs to Murrayfield. Murrayfield was the real party in interest." (Reply at p. 6.) However, this argument misconstrues Salvation's direct claims, which allege that Murrayfield, Logsdon, Southside, and Hill conspired to collectively defraud Salvation into investing in the first place (see, e.g., ROA #902, TAC, at ¶¶ 58-172)—not just that Seller Defendants defrauded Murrayfield into purchasing the property, thereby resulting in Murrayfield suffering losses. Thus, the injured party for Salvation's direct claims is Salvation, not Murrayfield.

Logsdon, Southside, and Hill's reply also contends that "[t]here is no question that Murrayfield had the same interest as Salvation and a strong motive to assert that interest in pursuing Murrayfield's fraud claims against sellers." (*Id.* at p. 6.) However, on a motion for judgment on the pleadings, the Court must assume as true Plaintiff's allegations in the complaint. (See *Southern Cal. Edison Co. v. City of Victorville* ("*SCE*") (2013) 217 Cal.App.4th 218, 227 [standard for MJOP is "essentially the same as that applicable to a general demurrer"]; *Thomas v. Regents of University of Cal.* (2023) 97 Cal.App.5th 587, 611 [court must construe complaint liberally and accept as true factual allegations of complaint "however odd or improbable" they may be].) Here, Plaintiff alleges that Murrayfield conspired or worked together with Logsdon, Southside, and Hill to defraud Plaintiff. Assuming that is true, there is no question that Murrayfield would *not* have the same interest as Salvation.

The Court also finds that the Missouri Plaintiffs' claims against Logsdon, Southside, and Hill are not the same cause of action as Salvation's claims against them in this case. "California's res judicata doctrine is based upon the primary right theory," as "a 'cause of action' is comprised of a 'primary

		right' of the plaintiff." (*Mycogen Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888, 904, internal quotes omitted.) "[T]he primary right is simply the plaintiff's right to be free from the particular injury suffered." (*Id.*, internal quotes omitted.) When "the basis of the claim is completely different, and rests upon a complete separate set of facts" from the claim in the first suit, res judicata does not apply. (*Sawyer v. First City Financial Corp.* (1981) 124 Cal.App.3d 390, 402-403 ["breach of contract by failing to pay a note violates a 'primary right' which is separate from the 'primary right' not to have the note stolen"].) Here, in the Missouri Action, the Missouri court granted summary judgment on the only claim alleged against Logsdon, i.e., unjust enrichment. (ROA #2977, Notice of Errata, Exh. 2.) According to the operative complaint filed in the Missouri Action, the Missouri Plaintiffs, including Murrayfield, alleged that Logsdon was unjustly enriched because of the alleged fraud perpetrated upon Murrayfield by the sellers of the Murrayfield property, including Southside and Hill. (See ROA #2940, Exh. 1 [Mo. Compl.], ¶¶ 161-165.) As for Southside and Hill, the only two claims that were adjudicated on the merits were Murrayfield's fraud claims. Thus, the primary right in the Missouri Action was *Murrayfield's* right to be free from fraud committed by Southside and Hill. In contrast, here, as explained above, Salvation's direct claims against Logsdon, Southside, and Hill allege that *Murrayfield, Logsdon, Southside, and Hill conspired to collectively defraud Salvation*. The inference is that Murrayfield was not actually defrauded by Southside and Hill but were in fact working together with Southside and Hill (and Logsdon) to defraud Salvation. Thus, the primary right in this action is *Salvation's* right to be free from fraud committed by *Murrayfield together* with Logsdon, Southside, and Hill. Thus, if anything, any ruling in the Missouri Action concluding that Southside and Hill did not defraud Murrayfield *supports or is at least consistent with* Salvation's claims here. As Salvation put it, "[i]n other words, Murrayfield was not defrauded by any of the Sellers because Murrayfield was itself in on the fraud." (Opp. at p. 17.) Accordingly, for these same reasons, the Court finds that any issues adjudicated in the Missouri Action as to Murrayfield's fraud claims against Southside and Hill and Murrayfield's unjust enrichment claims against Logsdon are not the same issues to be adjudicated in this action. Seller Defendants contend that "each of Salvation's direct causes of action requires Salvation to prove up at least one of two common factual issues: [¶] 1) that Sellers misrepresented pertinent information to Murrayfield and its shareholders regarding the Murrayfield Property. [¶] 2) that Sellers concealed pertinent information from Murrayfield and its shareholders regarding the Murrayfield Property." (Mot. P&A at p. 9.) But that is incorrect. Again, Salvation's theory is that Murrayfield, Logsdon, Southside, and Hill were together "in on the fraud" perpetrated against Salvation, not that Logsdon, Southside, or Hill misrepresented anything to Murrayfield. Therefore, whether Seller Defendants misrepresented anything to Murrayfield is not an issue that is pertinent to Salvation's direct claims. The Court also **ADMONISHES** Seller Defendants for mischaracterizing this Court's previous comments at the 3/13/2026 hearing on a motion to stay

		the instant action. (See Reply at pp. 2, 9, fn. 5.) In their reply, Seller Defendants state that this Court previously "opined the factual conspiracy issues had, in fact, been adjudicated in Sellers' favor" in the Missouri Action, thereby implying that the Court had already decided or ruled that the conspiracy issues had already been decided as applied to Plaintiff's *direct* claims in this case. (*Id.*) But the Court explicitly stated that it did not "want to get too far down the path because [the Court did not [have a motion in front of [the Court] on [whether conspiracy has been adjudicated]," and the Court also clarified that when the Court "was really just mainly trying to understand some of the theories as to how this case could still be viable," by "this case," the Court meant "very specific[ally] . . . the MO Murrayfield . . . derivative claims given that judgment." (ROA #2941, Exh. 1, 12:26-13:6.) The Court's statements are not amenable to the characterization provided by the Seller Defendants. In short, Logsdon, Southside, and Hill have also failed to demonstrate that they are entitled to "dismissal" or judgment on the pleadings in this case because of res judicata or collateral estoppel based upon the Missouri Action. Plaintiff Salvation shall give notice.
116	**Gerlette vs. Altman Specialty Plants, LLC** **2023-01324651**	**Motion for Final Approval of Class/PAGA settlement** Plaintiff Alicia Esquivel Gerlette's Motion for Final Approval of Class Action and PAGA Settlement is **CONTINUED September 24, 2026 at 2:00 p.m. in Department CX102** in order to give Class Counsel an opportunity to address the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 7/29/2022, Plaintiff Alicia Esquivel Gerlette, individually and on behalf of all others similarly situated, filed a class action complaint against Defendant Altman Specialty Plants, LLC, which Plaintiff dismissed without prejudice after she acquiesced to Defendant's demand that she submit a demand for individual arbitration. After Defendant failed to timely wire payment of the initial arbitration invoice, Plaintiff withdrew her individual arbitration demand and refiled her class action complaint on 5/10/2023 in the instant action. (ROA #2.) On 7/18/2023, Defendant answered the complaint. (ROA #16.) The operative complaint is the second amended complaint (SAC), filed on 6/25/2025 per the parties' stipulation and the Court's order, which alleges various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #97.) On 6/26/2025, Plaintiff filed a Motion for Preliminary Approval of the Class Action and PAGA Settlement. (ROA #104.) On 2/26/2026, at the 3rd hearing on the matter, the Court granted the motion. (ROA #153.) On 4/8/2026, the Court entered the order granting the motion. (ROA #159.)